

An award of monetary sanctions must be “reasonable under the circumstances” *Mattco Forge, Inc. v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437; Code Civ. Proc., § 2023.030(a) (monetary sanctions may be awarded to compensate a party for reasonable expenses). “The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 791.

Based on information appearing in the Avansino declaration, the monetary sanctions requested by Defendant reflect 8.2 total attorney hours to draft the discovery motion, and an anticipated 2 hours to review the opposition and prepare a reply, and attend the hearing. Avansino Decl., ¶¶ 22-24. No opposition was filed in this matter and correspondingly no reply was submitted. Thus, no award of fees on that basis is warranted. Likewise, the *prospective* time to prepare and present the motion for hearing is speculative and unwarranted based on the current procedural posture. The Court also finds the time expended by counsel to prepare the discovery motion excessive. Therefore, the Court grants sanctions in the amount of six (6) hours of work at a rate of \$350/hour, for a total of \$2,100, plus the filing fee of \$60, for a total amount of sanctions of \$2,160.00.

7. CU0002810 Daniel Dion et al vs. Dana May Dion

Plaintiff’s motion to change venue is granted. Venue shall be changed to Sonoma County, California. Plaintiffs shall have thirty (30) days to pay the statutory transfer fees to perfect the transfer to Sonoma County. If said fees are not paid within thirty (30) days of the entry of this Order, the instant case shall be dismissed.

8. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District dba Tahoe Forest Hospital D/P SNF et al

Petitioners’ petition for relief from Government Code Section 945.4 pursuant to Government Code Section 946.6 is denied.

Legal Standard

Government Claims Presentation

“A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the action.” Gov. Code § 911.2(a). “When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.” Gov. Code § 911.4(a). “The board shall grant or deny the application within 45 days after it is presented to the board.” Gov. Code § 911.6(a). “If the board fails or refuses to act on an application within the time prescribed by this section, the application shall be deemed to have been denied on the 45th day...” Gov. Code § 911.6(c).